

[T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (*Ibid.*)

1. *Procedural Unconscionability*

The procedural element of an unconscionable contract generally takes the form of a contract of adhesion, which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it. (*Little v. Auto Stiegler, Inc.* (2003) 29 Cal.4th 1064, 1071, citing *Armendariz, supra*, 24 Cal.4th at 113-14.)

Plaintiff argues the arbitration agreement was procedurally unconscionable because it is a contract of adhesion, and because including claims against the manufacturer in the arbitration clause constitutes surprise. (Opposition, 5:1-18.) Plaintiff does not provide any evidence to support this argument such as a declaration that she read the agreement, but did not notice the reference to the manufacturer, or that she was allowed little time to read the agreement, or other circumstances that might contribute to procedural unconscionability.

Even assuming plaintiff could establish some degree of procedural unconscionability (which is common in adhesion contracts in any event), a procedurally unconscionable arbitration clause may still be legally enforceable. The Court accordingly looks to whether plaintiff has established substantive unconscionability.

2. *Substantive Unconscionability*

Substantive unconscionability focuses on the actual terms of the agreement and evaluates whether they create overly harsh or one-sided results. (*Armendariz, supra*, 24 Cal.4th at 114.) A contract term is not substantively unconscionable when it merely gives one side a greater benefit. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 246, internal quotations omitted.) “Not all one-sided contract provisions are unconscionable; hence the various intensifiers in our formulations: ‘overly harsh,’ ‘unduly oppressive,’ ‘unreasonably favorable.’” (*Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 911, citing *Pinnacle, supra*, 55 Cal.4th at 246, emphasis in original.) To be substantively unconscionable, the agreement must be something more than a mere “bad bargain.” (*Sanchez, supra*, 61 Cal.4th at 911.)

Plaintiff’s arguments with respect to substantive unconscionability are lacking. She essentially argues that, based on defendant’s status as a non-signatory, its invocation of the right to arbitration would be unfair. This, at most, qualifies as a minimally bad bargain for plaintiff and does not rise to the level required to invalidate the contractual provisions.

Accordingly, the motion must be **granted**.

15. 9:00 AM CASE NUMBER: C26-00300
CASE NAME: ELVICIO MACHADO VS. HHH PROPERTY GROUP, LLC
HEARING IN RE: ORDER TO SHOW CASUE RE: PRELIMINARY INJUNCTION
FILED BY: MACHADO, ELVICIO
TENTATIVE RULING:

Plaintiff Elvicio Machado has filed a complaint alleging wrongful eviction against HHH Property Group and others. Plaintiff also filed an Ex Parte Application for a Temporary Restraining Order to Enjoin the

Trustee's Sale and Order to Show Cause re Preliminary Injunction. Plaintiff indicated the sale date was February 2, 2026. The Temporary Restraining Order was denied and the OSC was set for hearing March 5, 2026.

Plaintiff has filed no further documents. Plaintiff has filed no proof of service of the summons, complaint, or the Order to Show Cause. Cal. Rules of Ct. 3.110; 3.1151. All the Court has received is a Notice of Non-Monetary Status of Defendant Fortra Law, the trustee under the deed of trust. Additionally, the proposed sale date has passed without any indication of its outcome.

As the Plaintiff has failed to demonstrate compliance with obligations, the Motion is **denied**. The Initial Case Management Conference date is set for June 9.

16. 9:00 AM CASE NUMBER: MSC19-02043
CASE NAME: GARAVENTA VS AZARI
***HEARING ON MOTION IN RE: ORDER FOR PAYMENT OF EXPENSES**
FILED BY:
TENTATIVE RULING:
Taken off calendar.

17. 9:00 AM CASE NUMBER: MSC22-00088
CASE NAME: KALAMAS VS. JOHN MUIR HEALTH
***HEARING ON MOTION IN RE: STRIKE OF TAX COSTS (CONTINUED FROM 12.18.2025)**
FILED BY:
TENTATIVE RULING:

Plaintiff Alicia Kalamas moves to strike, or in the alternative, tax costs. Defendant John Muir Health prevailed at a trial held before a referee appointed pursuant to Code of Civil Procedure section 638. The issues at trial concerned the circumstances of her termination as an employee.

The party filing the cost memorandum bears the initial burden of showing that the statute allows the item and is proper on its face. (*Ladas v. California Sate Auto. Assn.* (1993) 19 Cal.App.4th 761, 774-776.) For items that are expressly permitted by statute, the burden is on the objecting party to establish that the costs were not necessary or reasonable, based on evidence. (*Litt v. Eisenhower Med. Ctr.* (2015) 237 Cal.App.4th 1217, 1224.) For items that are not expressly allowed, the burden of proof is on the party claiming them to show that they were reasonable and necessary. (*Foothill-DeAnza Community College Dist. v. Emerich* (2007) 158 Cal.App.4th 11, 29.)

Plaintiff's arguments are addressed as follows:

Validity of the Verification

Plaintiff contends that the required verification is inadequate, because the signer lacks personal knowledge of the necessity for the items, including a stipulation concerning JAMS costs. This does not render the verification facially inadequate. It may render the costs nonrecoverable, but each category will be addressed on their merits in turn.

Expert Fees